

Gideon v. Wainwright, 372 U.S. 335 (1963)

Case summary handout for the first-year pre-law cohort

Facts

Clarence Earl Gideon was charged in Florida with breaking and entering with intent to commit a misdemeanour, which under Florida law constituted a felony. He appeared in court without an attorney. He asked the trial judge to appoint counsel because he could not afford one. The judge denied the request, citing Florida law that permitted appointment of counsel only for indigent defendants charged with capital offences.

Gideon represented himself. He made an opening statement to the jury, cross-examined the prosecution witnesses, presented witnesses in his own defence, declined to testify, and argued his innocence. The jury found him guilty. He was sentenced to five years in state prison.

Procedure

Gideon filed a handwritten petition for a writ of habeas corpus in the Florida Supreme Court. The petition was denied. He then filed a handwritten petition in the Supreme Court of the United States. The Court granted certiorari to decide whether the Sixth Amendment right to counsel applies to defendants in state criminal proceedings.

Issue

Whether the Sixth Amendment guarantee of the right to counsel, made applicable to the states through the Fourteenth Amendment, requires a state court to appoint counsel for an indigent defendant charged with a felony.

Holding

Reversed and remanded. The Court unanimously overruled *Betts v. Brady*, 316 U.S. 455 (1942), and held that the Sixth Amendment guarantee of counsel is a fundamental right essential to a fair trial. The right is therefore made obligatory upon the states by the Fourteenth Amendment.

Reasoning

Justice Black, writing for the Court, explained that lawyers in criminal cases are necessities, not luxuries. The Court observed that any person hauled into court who is too poor to hire a lawyer cannot be assured a fair trial unless counsel is provided. The noble ideal of fair trials before impartial tribunals cannot be realised if the poor person charged with a crime has to face accusers without a lawyer to assist.

Disposition

Gideon was retried. Represented this time by court-appointed counsel, W. Fred Turner, he was acquitted by the jury after roughly one hour of deliberation.

Why the case still matters on a 35-file desk

Gideon settled the right. It did not fund the office. Sixty years later, the doctrinal question is closed and the practical question is open: when caseloads exceed the time required for competent representation, the right exists on paper while it erodes in practice. *Strickland v. Washington*, 466 U.S. 668 (1984), set the effective-assistance floor; the daily work is keeping practice above it.

Suggested reading

Anthony Lewis, *Gideon's Trumpet* (1964). Bruce Jackson, *Killing Time* (2003). American Bar Association, *Ten Principles of a Public Defense Delivery System* (2002).